



OUT-OF-HOSPITAL DO-NOT-RESUSCITATE (OOH-DNR) ORDER

TEXAS DEPARTMENT OF STATE HEALTH SERVICES

Person's full legal name: _____ Date of birth: _____ ☐ Male ☐ Female

This document becomes effective immediately on the date of execution for health care professionals acting in out-of-hospital settings. It remains in effect until the person is pronounced dead by authorized medical or legal authority or the document is revoked. Resuscitation measures include cardiopulmonary resuscitation (CPR), transcutaneous cardiac pacing, defibrillation, advanced airway management, artificial ventilation. Comfort care will be given.

A. Declaration of the adult person: I am competent and at least 18 years of age. I direct that no resuscitation measures be initiated or continued for me.
 Person's signature: _____ Date: _____ Printed name: _____

B. Declaration by legal guardian, agent, or proxy on behalf of the adult person who is incompetent or otherwise incapable of communication:
 I am the ☐ legal guardian, ☐ agent in a Medical or ☐ proxy in a directive to physicians of the above-noted person who is incompetent or
 Power of Attorney, otherwise mentally or physically incapable of communication.
 Based upon the known desires of the person or a determination of the best interest of the person, I direct that no resuscitation measures be
 initiated or continued for the person.
 Signature: _____ Date: _____ Printed name: _____

C. Declaration by a qualified relative of the adult person who is incompetent or otherwise incapable of communication: I am the above noted
 person's ☐ spouse, ☐ adult child, ☐ parent, or ☐ nearest living relative, and I am qualified to make this treatment decision under Health
 and Safety Code §166.088.
 To my knowledge the adult person is incompetent or otherwise mentally or physically incapable of communication and is without a legal guardian,
 agent, or proxy. Based upon the known desires of the person or a determination of the best interests of the person, I direct that no resuscitation
 measures be initiated or continued for the person.
 Signature: _____ Date: _____ Printed name: _____

**D. Declaration by physician, based on directive to physicians by a person now incompetent or nonwritten communication to the physician by a
 competent person:** I am the above-noted person's attending physician and have
☐ seen evidence of his/her previously issued directive to or ☐ observed his/her issuance before two witnesses of an OOH-DNR in a
 physicians by the adult, now incompetent, nonwritten manner.
 I direct that no resuscitation measures be initiated or continued for this person. License Number: _____
 Attending physician's signature: _____ Date: _____ Printed name: _____

E. Declaration on behalf of the minor person: I am the minor's ☐ parent, ☐ legal guardian, or ☐ managing conservator.
 A physician has diagnosed the minor as suffering from a terminal or irreversible condition. I direct that no resuscitation measures be initiated or
 continued for the person.
 Person's signature: _____ Date: _____ Printed name: _____

TWO WITNESSES: (See qualifications on backside.) We have witnessed the above-noted competent adult person or authorized declarant making his/her
 signature above and, if applicable, the above-noted adult person making an OOH-DNR by nonwritten communication to the attending physician.

Witness 1 signature: _____ Date: _____ Printed name: _____

Witness 2 signature: _____ Date: _____ Printed name: _____

The above noted person personally appeared before me and signed the above noted declaration on this date: _____.

Notary in the State of Texas and County of _____.

Signature & seal: _____ Notary's printed name: _____ Notary Seal

[Note: Notary cannot acknowledge the witnessing of the person making an OOH-DNR order in a nonwritten manner.]

PHYSICIAN'S STATEMENT: I am the attending physician of the above-noted person and have noted the existence of this order in the person's medical
 records. I direct health care professionals acting in out-of-hospital settings, including a hospital emergency department, not to initiate or continue
 resuscitation measures for the person. License Number: _____

Physician's signature: _____ Date: _____ Printed name: _____

F. Directive by two physicians on behalf of the adult, who is incompetent or unable to communicate and without guardian, agent, proxy or relative:
 The person's specific wishes are unknown, but resuscitation measures are, in reasonable medical judgment, considered ineffective or are otherwise
 not in the best interests of the person. I direct health care professionals acting in out-of-hospital settings, including a hospital emergency
 department, not to initiate or continue resuscitation measures for the person.

Attending physician's signature: _____ Date: _____ Printed name: _____ Lic. # _____

Signature of second physician: _____ Date: _____ Printed name: _____ Lic. # _____

All persons who have signed above must sign below, acknowledging that this document has been properly completed.

Person's signature: _____ Guardian/Agent/Proxy/Relative signature: _____

Attending physician's signature: _____ Second Physician Signature: _____

Witness 1 signature: _____ Witness 2 signature: _____ Notary signature: _____

INSTRUCTIONS FOR ISSUING AN OOH-DNR ORDER

PURPOSE: The Out-of-Hospital Do-Not-Resuscitate (OOH-DNR) Order on reverse side complies with Health and Safety Code (HSC), Chapter 166 for use by qualified persons or their authorized representatives to direct health care professionals to forgo resuscitation attempts and to permit the person to have a natural death with peace and dignity. This Order does NOT affect the provision of other emergency care, including comfort care.

APPLICABILITY: This OOH-DNR Order applies to health care professionals in out-of-hospital settings, including physicians' offices, hospital clinics and emergency departments.

IMPLEMENTATION: A competent adult person, at least 18 years of age, or the person's authorized representative or qualified relative may execute or issue an OOH-DNR Order. The person's attending physician will document existence of the Order in the person's permanent medical record. The OOH-DNR Order may be executed as follows:

Section A - If an adult person is competent and at least 18 years of age, he/she will sign and date the Order in Section A.

Section B - If an adult person is incompetent or otherwise mentally or physically incapable of communication and has either a legal guardian, agent in a medical power of attorney, or proxy in a directive to physicians, the guardian, agent, or proxy may execute the OOH-DNR Order by signing and dating it in Section B.

Section C - If the adult person is incompetent or otherwise mentally or physically incapable of communication and does not have a guardian, agent, or proxy, then a qualified relative may execute the OOH-DNR Order by signing and dating it in Section C.

Section D - If the person is incompetent and his/her attending physician has seen evidence of the person's previously issued proper directive to physicians or observed the person competently issue an OOH-DNR Order in a nonwritten manner, the physician may execute the Order on behalf of the person by signing and dating it in Section D.

Section E - If the person is a **minor** (less than 18 years of age), **who has been diagnosed by a physician as suffering from a terminal or irreversible condition**, then the minor's parents, legal guardian, or managing conservator may execute the OOH-DNR Order by signing and dating it in Section E.

Section F - If an adult person is incompetent or otherwise mentally or physically incapable of communication and does not have a guardian, agent, proxy, or available qualified relative to act on his/her behalf, then the attending physician may execute the OOH-DNR Order by signing and dating it in Section F with concurrence of a second physician (signing it in Section F) who is not involved in the treatment of the person or who is a representative of the ethics or medical committee of the health care facility in which the person is a patient.

In addition, the OOH-DNR Order must be signed and dated by two competent adult witnesses, who have witnessed either the competent adult person making his/her signature in section A, or authorized declarant making his/her signature in either sections B, C, or E, and if applicable, have witnessed a competent adult person making an OOH-DNR Order by nonwritten communication to the attending physician, who must sign in Section D and also the physician's statement section.

Optionally, a competent adult person or authorized declarant may sign the OOH-DNR Order in the presence of a notary public. However, a notary cannot acknowledge witnessing the issuance of an OOH-DNR in a nonwritten manner, which must be observed and only can be acknowledged by two qualified witnesses. Witness or notary signatures are not required when two physicians execute the OOH-DNR Order in section F. The original or a copy of a fully and properly completed OOH-DNR Order or the presence of an OOH-DNR device on a person is sufficient evidence of the existence of the original OOH-DNR Order and either one shall be honored by responding health care professionals.

REVOCACTION: An OOH-DNR Order may be revoked at ANY time by the person, person's authorized representative, or physician who executed the order. Revocation can be by verbal communication to responding health care professionals, destruction of the OOH-DNR Order, or removal of all OOH-DNR identification devices from the person.

AUTOMATIC REVOCACTION: An OOH-DNR Order is automatically revoked for a person known to be pregnant or in the case of unnatural or suspicious circumstances.

DEFINITIONS

Attending Physician: A physician, selected by or assigned to a person, with primary responsibility for the person's treatment and care and is licensed by the Texas Medical Board, or is properly credentialed and holds a commission in the uniformed services of the United States and is serving on active duty in this state. [HSC §166.002(12)].

Health Care Professional: Means physicians, nurses, physician assistants and emergency medical services personnel, and, unless the context requires otherwise, includes hospital emergency department personnel. [HSC §166.081(5)]

Qualified Relative: A person meeting requirements of HSC §166.088. It states that an adult relative may execute an OOH-DNR Order on behalf of an adult person who has not executed or issued an OOH-DNR Order and is incompetent or otherwise mentally or physically incapable of communication and is without a legal guardian, agent in a medical power of attorney, or proxy in a directive to physicians, and the relative is available from one of the categories in the following priority: **1)** person's spouse; **2)** person's reasonably available adult children; **3)** the person's parents; or, **4)** the person's nearest living relative. Such qualified relative may execute an OOH-DNR Order on such described person's behalf.

Qualified Witnesses: Both witnesses must be competent adults, who have witnessed the competent adult person making his/her signature in section A, or person's authorized representatives making his/her signature in either Sections B, C, or E on the OOH-DNR Order, or if applicable, have witnessed the competent adult person making an OOH-DNR by nonwritten communication to the attending physician, who signs in Section D. Optionally, a competent adult person, guardian, agent, proxy, or qualified relative may sign the OOH-DNR Order in the presence of a notary instead of two qualified witnesses. Witness or notary signatures are not required when two physicians execute the order by signing Section F. One of the witnesses must meet the qualifications in HSC §166.003(2), which requires that at least one of the witnesses not: (1) be designated by the person to make a treatment decision; (2) be related to the person by blood or marriage; (3) be entitled to any part of the person's estate after the person's death either under a will or by law; (4) have a claim at the time of the issuance of the OOH-DNR against any part of the person's estate after the person's death; or, (5) be the attending physician; (6) be an employee of the attending physician or (7) an employee of a health care facility in which the person is a patient if the employee is providing direct patient care to the patient or is an officer, director, partner, or business office employee of the health care facility or any parent organization of the health care facility.

Report problems with this form to the Texas Department of State Health Services (DSHS) or order OOH-DNR Order/forms or identification devices at (512) 834-6700.

Declarant's, Witness', Notary's, or Physician's electronic or digital signature must meet criteria outlined in HSC §166.011

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